

Mak Trnka

House Committee on Oversight and Reform

June 6, 2021

Testimony Hearing

**TESTIMONY OF MAK TRNKA BEFORE THE HOUSE OVERSIGHT AND REFORM
COMMITTEE EXPLAINING HOW OUR ELECTIONS COULD BE MORE
DEMOCRATIC AND FAIRER**

Written Testimony

Mr. Chairman, ranking members of Congress, members of the subcommittee, I want to open up with a thank you to all the people in this committee for already working hard and introducing bills that would bring fundamental reform to our democracy that has to be fixed. The way our electoral college system has worked so far in America has faced growing concerns from the American people and intensified division, so I also want to thank you for holding this hearing today in the House Oversight and Reform Committee about the way we can reform our electoral college system to improve how our democracy and the electoral college should function. This subcommittee working with the current administration has a rare opportunity to build consensus and develop a legislative agenda to fix and reform our broken electoral college system, instead of abolishing it. I suggest you start looking at the barriers a “Winner-Take-It-All” system causes in an electoral college election. The main problem the system triggers in an election is that it makes election results too disproportionate and helps ignore the will of the people.

The “Winner-Take-It-All” system has given too much power to swing states, giving them a much more significant advantage of choosing the next President of the United States than a non-swing state where the candidate would receive significantly more votes than their opponent. As a voter I and observer of the very controversial Presidential Election of 2016, I can assure you there is clear data to prove my point. In 2016, in the very blue state of Massachusetts, Hillary Clinton won 27.3% more of the popular vote against Donald Trump in that state, giving her all the state’s 13 electoral votes. On the other hand, Donald Trump won the swing state of Arizona against Hillary by only a tiny popular vote of 3.5%, giving him all the state’s 10 electoral votes, and won Wisconsin against Hillary by less than 1% of the popular vote, still receiving all the 10 elector votes from the state. Therefore, if we add the popular vote total each candidate received in those three states, Hillary tops Trump, winning 790,321 more votes. However, since we have a “Winner-Take-It-All” System, combining the candidates’ electoral votes total in each of those 3 states, Trump won 20 electoral votes from Arizona and Wisconsin and Hillary just won the 13 electoral votes from Massachusetts, despite losing the popular vote. That’s an example of disproportionality and ignoring the will of the people.

Another problem I suggest the committee look at is what giving swing states too much power impacts and why. If you do not live in a swing state like Pennsylvania, Michigan, Wisconsin, North Carolina, or now Arizona, you won’t see as many canvassers coming to your door, receive as much media attention, see as many ads, nor probably have the nominee show up in your state at all. By all those means, the electoral college makes the swing states gain the most attention, which isn’t even the most representative states of the country overall usually. Partisan states

could feel very ignored, making them not want to participate because they believe their state's color will never change. Many folks across the country say if swing states weren't given too much power, the people in already very blue or red states would be more willing to vote, and voter turnout would be higher.

As a Partisan state voter, myself, I have never been satisfied with campaigning for any democrat in my state since I believed it was obvious, they'd win. Also, as a canvasser, several doors I've shown up to, the majority of those people I met said they weren't interested in voting due to the fact it's obvious the Democrats would win and they'd just receive all the elector votes. Therefore, I believe we need to make sure the Swing States are not the only ones to decide the election and give partisan states feel just as important. Also, going back to the "Winner-Take-It-All" Situation, I believe we need to fix the way elector votes work to not make the system so messed up by making election results very undemocratic, nor abolish the electoral college overall, because we don't want certain states to be totally ignored and only make the most populated states be given power. My written testimony includes a very big idea and suggestion to the subcommittee on how I believe it's best to reform the electoral college to make our democracy work better and make the electoral votes and popular vote go together.

I suggest, let's not end the Electoral College but, but end the "Winner-Takes-it-All" system to not give all the electoral votes from each state to the candidate that wins it. Instead, make legislation that lets the total number of electoral votes by a state be multiplied by the percentage popular vote, decimal form, the candidate received in that state. Later, by doing that math, whatever the result comes out to be, approximate the number and then make that be the number of electoral votes the candidate receives in that state. The same thing should be done for the other candidate in that state, to determine the number of electoral votes they receive in that state by doing the same math. This would make election results by state and overall, more proportionate, and fairer, not making a candidate in such a close result, popular vote wise, receive all the electoral votes if they barely win the state. Also, this would easily help prevent a candidate wins a state undemocratically, instead of winning both electoral and popular vote. Also, for the committee to understand how that makes results look like, let's look at an example from the 2016 election if we did this math. As said from the beginning, when combining the results in the 2016 election of deep blue state of Massachusetts (13 points), where Hillary won by a landslide, and swing states like Arizona (10 points) & Wisconsin (10 points), which Trump won by so little, using the present system, Trump easily won the electoral vote, 20 to 13, despite still losing the popular vote by nearly 1.5 million votes. With the new method, as said before, Hillary beat Trump by a landslide 60.01% to 32.81% total. If we multiply Massachusetts's 13 electoral votes with Hillary's popular vote total, decimal form, 13×0.6001 , it equals 7.8, approximately 8 electoral votes. On the other hand, with the same method, Trump's electoral vote total in Massachusetts would be 4.3, approximately 4. So far, the result is 8-4. Now let's look at the swing states. In the swing state of Arizona, which is 10 electoral votes total, Trump won the popular vote in Arizona, 49.03% to 45.46%. Multiplying 10 by 0.4903 would give Trump 4.9 electoral votes, approximately 5 total. Hillary on the other hand would receive 4.55, approximately 5 of the other electoral votes. Adding those totals to the current amount would still give Hillary the lead in electoral votes and the Popular Votes, 13-9 against Trump. Now let's look at Wisconsin which Trump won by less than 1%, 46.45% to 47.22% against Hillary. Multiplying his popular vote percentage total, decimal form, by Wisconsin's 10 electoral votes would give him 4.77 electoral votes, approximately 5. On the other hand, Hillary on the other

hand would receive 4.65, approximately 5 electoral votes as well. Adding that all up, even if Trump won Arizona and Wisconsin by a little bit and Hillary winning Massachusetts by a landslide, she would win the electoral vote by this method 18-14 against Trump, along with winning the popular vote. This would make Trump lose both the electoral and popular vote, not just one of them.

By all means, we need to get rid of the “Winner-Take-It-All” system and not give swing states too much power to both make our elections more democratic, proportionate, and make every state feel like it matters to urge more people to vote. This should be done in a matter that doesn’t concern both sides or lead to a problem state or people feel ignored. I look forward to answering your questions and supporting your efforts going forward.